

Shlok Sangam v. State of U.P. — instalment facility under clause 6.14

High Court of Judicature at Allahabad · Division Bench · 6 October 2020 · Writ-C No. 6869 of 2020 · **Writ disposed; petitioner to represent under clause 6.14 for instalments, deposits to be adjusted.**

HEADNOTE

Where electricity dues were not disputed and the consumer offered to pay in instalments, the Allahabad High Court declined to quash a Tehsildar recovery certificate or to order reconnection on merits. Noting the licensee's lack of objection and clause 6.14 of the U.P. Electricity Supply Code, 2005, it disposed of the writ by directing the consumer to represent to the licensee, who was to consider the instalment request under clause 6.14, pass an order in accordance with law, and adjust any amount already deposited while fixing instalments.

FACTUAL SUMMARY

Shlok Sangam of village Tiggipur, Tehsil Nizamabad, District Azamgarh, sought quashing of a Tehsildar recovery certificate dated 16 December 2019 and restoration of electricity connection no. AT02201/025405. He did not dispute the demanded amount and offered to pay in instalments. Counsel for the distribution licensee had no objection and invoked the instalment facility. The matter had earlier been recused by one Division Bench and adjourned for non-appearance before final disposal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for undisputed dues

HOLDING

Where the consumer does not dispute electricity dues and seeks to pay in instalments, and the licensee does not object, the writ petition is disposed of by directing the consumer to represent to the licensee, who shall consider the request under clause 6.14 of the U.P. Electricity Supply Code, 2005, pass an appropriate order in accordance with law, and adjust any amount already deposited while fixing instalments. The recovery certificate is not quashed and reconnection is not ordered on merits. ¶ 5

PRINCIPLE TAGS

instalment-payment-clause-6.14 The Court disposed of the writ by sending the consumer to the licensee for consideration of an instalment request under clause 6.14, with adjustment of amounts already deposited, without deciding the recovery or reconnection on merits. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE TEHSILDAR RECOVERY CERTIFICATE DATED 16.12.2019

Certiorari to quash was prayed; the dues were not disputed and the petition was disposed of by a clause 6.14 representation direction. ¶ 5

NOT DECIDED — RESTORATION OF ELECTRICITY CONNECTION NO. AT02201/025405

Mandamus for reconnection was prayed; the Court did not order restoration on merits. ¶ 5